



CITY OF MANCHESTER
PLANNING AND COMMUNITY DEVELOPMENT

Planning and Zoning
Building Regulation
Code Enforcement
Community Improvement Program

Jeffrey D. Belanger, AICP
Director

Nicola Strong
Deputy Director, Planning & Zoning

Michael J. Landry, PE, Esq.
Deputy Director, Building Regulations

August 31, 2026

JEN Homestead Revocable Trust (Owner)
975 Cedar Street
Manchester, NH 03103

Joseph M. Wichert, LLS, Inc. (Agent)
802 Amherst Street
Manchester, NH 03104

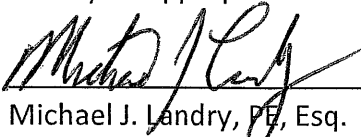
RE: ZBA2026-081, 975 Cedar Street, B-3

Zoning Relief Required for Building Permit

Your application for a permit dated **August 14, 2026** to **maintain seven accessory structures, consisting of five sheds and two lean-tos**, in the street yard of a through lot in the **MX-1 Zoning District**, all as per documents submitted through **August 14, 2026** and with non-compliance listed in the Zoning Review dated **August 27, 2026** is hereby acknowledged.

According to Section(s) **5.6.2.A Accessory Structures in the Street Yard** of the Zoning Ordinance of the City of Manchester, New Hampshire, passed to be ordained on March 1, 2026, this is prohibited. Consequently, I have no authority to grant this permit. Permit is hereby **DENIED**.

Further proceedings contemplated pertaining to this application must be pursuant to NH Revised Statutes Annotated 674:33 or the other statutory provisions relative to Zoning Boards of Adjustment, as may be appropriate.



Michael J. Landry, PE, Esq.
Deputy Director, Building Regulations

B....823....'85....John Niemiec

P.....#392.....'85 " "

E....1032....'85.... "

Htg....#715....'85.... " "

B..475-88..4/27/88..John Niemier .

E....#1190....8/4/88....John Niemiec

(B-1)..permit denied..6/24/93..John Niemiec

(B-1)....Tabled by ZBA....08/09/93....Case#114-ZO-93.

(B-1)....Appeal Denied....09/10/93....Case#114-ZO-93.

(B-1)....Request for re hearing....Denied....10/08/93.

B....#999....08/08/94....John & Elaine Niemiec (Add) 1-Fan

Htg....#842.....9/7/94.... Irving Lamb

Card #2

975 Cedar Street

R-2 ZONE

(B-2).S/A..permit denied..9/16/94..Laura Brevitz

(B-2)....S/A...Denied....10/17/94....Case#131-ZO-94.

(B-2)....Request for re hearing...Denied...11/14/94...Case
131-ZO-94

Plbg....#443....10/26/94.... Irving Lamb

E....#1795....12/19/94.... John Niemiec

B...#539...5/1/95..ELAINE NIEMIEC...4 FT PICKET FENCE

(B-2).....Tabled....10/16/95....Remand back from Superic

B...#1633...10/20/95...John Niemiec...12x12' storage Ct
shed.

(B-2)....appeal denied....11/16/95... C#131-ZO-94.

12/11/95 appeal filed from ZBA case Niemiec Vs. City of
Manchester ZBA decision Superir Court Docket #95E00361

Card #3

975 Cedar Street

R-2 zone
379/6-A(B-2) request for rehearing case#131-ZO-94..Laura
Brevitz(agt)..Granted..10/3/96(B-2)...Appeal granted...Case #131-Z)-96...Maintain a
6' stockades fence where not permitted.B...#1799...11/29/96...J Niemiec...Maintain a 6' stockade
fence where not permitted granted 11/14/96 Case # 131-ZO
94.B...#983-98...6/23/98...J Niemiec...erect a 4' & 6' fence
in side yard.

975 CEDAR STREET
Variance History

B-1 Case: 114-ZO-93

Replace an existing 5' chain link fence with a 6' stockade fence and maintain a 6' stockade fence installed without benefit of a permit.

DENIED

John & Elaine Niemiec (Owner)

Request for Rehearing DENIED

John Niemiec (Owner)

B-2 Case: 131-ZO-94

Maintain a 6' stockade fence.

DENIED

Laura J. Brevitz, Esq. (Agent)



ZONING BOARD OF ADJUSTMENT

City of Manchester, N.H.

VARIANCE NOTICE OF DECISION

Case No. 114-ZO-93 Property Location: 975 Cedar St.

You are hereby notified that the request of: John & Elaine Niemiec
975 Cedar St.

For a Variance of the Zoning Ordinance of the City of Manchester, N.H. passed to be ordained on January 6, 1965, Such request consisting of:

replace existing 5' chain link fence with a 6' stockade fence, also maintain
a 6' stockade fence installed without benefit of permit at 975 Cedar St.

has been Denied by three or more appointed members of the Board of Adjustment.

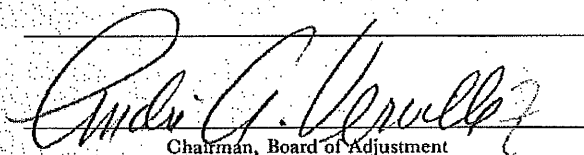
Stipulations or Comments: _____

Based on the information before the Board, the applicant has not met his/her burden in showing:

1. The requested use does not cause diminution in value of surrounding properties to be suffered. _____
2. Granting the permit would be of benefit to the public interest. _____
- * 3. Denial of the permit would result in unnecessary hardship to the owner seeking it. The applicant did not prove a hardship that would warrant the granting of the variance.

4. By granting the permit substantial justice would be done. _____

- * 5. The use must not be contrary to the Spirit of the Ordinance. Allowing a 6' stockade fence alongside the abutter would block off their light and visibility.


Chairman, Board of Adjustment

September 10, 1993

Date

Note: Per N.H. RSA 677:2 any aggrieved person affected by the Board's decision may request a rehearing within 20 days.

White: Board of Adjustment Green: Applicant Canary: Building Department Pink: Building Department Goldenrod: Planning Board



ZONING

BOARD OF ADJUSTMENT

City of Manchester, N. H.

REQUEST FOR RE HEARING

NOTICE OF DECISION

Re; Case No. 114-20-93

You are hereby notified that the request of

Address 975 Cedar St.

Name John Niemiec

Manchester, N. H. 03103

Address 975 Cedar St.

Manchester, N. H. 03103

For a RE HEARING of the variance which was denied

on September 10, 1993 to John Niemiec

September 27, 1993

According to New Hampshire revised statutes annotated, 1955 chapter 31:76, a meeting of the Board of

Adjustment was held on October 8, 1993

It was the decision of the majority of the appointed members of the Board of Adjustment that your request for a Re Hearing be

Denied

Denied-Granted

If granted, normal filing procedures must be followed through the Manchester Building Department.

Signed

Clerk

Date

*The request to maintain existing 6' stockade fence is denied. The Board feels that it is too close to the street.

NOTE: According to New Hampshire revised statutes annotated, 1955 chapter 31:77, the applicant may appeal by petition to the Superior Court within 30 days after denial.

If granted, the usual fee must be paid before the Re Hearing. Make check payable to The Board of Adjustment.

Building Department



ZONING BOARD OF ADJUSTMENT

City of Manchester, N.H.

VARIANCE NOTICE OF DECISION

Case No. 131V-ZO-94 Property Location: 975 Cedar St.

You are hereby notified that the request of Attorney Laura J. Brevitz (Agent)
726 Mast Rd., P. O. Box 65, Goffstown, N. H. 03045

For a Variance of the Zoning Ordinance of the City of Manchester, N.H. passed to be ordained on January 6, 1965. Such request consisting of:
maintain a 6' stockade fence where not permitted, as per plan submitted
September 7, 1995, at 975 Cedar St.

has been Denied* by three or more appointed members of the Board of Adjustment.

Stipulations or Comments: *Upon consideration of the evidence presented, the Board finds that the
applicant has failed to sustain his burden of proof.

Based on the information before the Board, the applicant has not met his/her burden in showing.

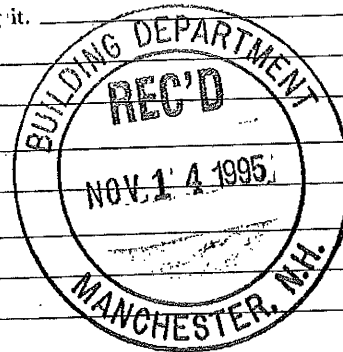
1. The requested use does not cause diminution in value of surrounding properties to be suffered.

2. Granting the permit would be of benefit to the public interest.

*3. Denial of the permit would result in unnecessary hardship to the owner seeking it.

4. By granting the permit substantial justice would be done.

5. The use must not be contrary to the Spirit of the Ordinance.



John J. Brady
Chairman, Board of Adjustment

November 13, 1995

Date

Note: Per N.H. RSA 677:2 any aggrieved person affected by the Board's decision may request a rehearing within 20 days.

White: Board of Adjustment

Green: Applicant

Canary: Building Department

Pink: Building Department

Goldenrod: Planning Board

ZONING REVIEW

Reviewed By: Jim Tierney
Revised By: Glenn Gagne

Date: 8/25/2026
Date Revised: 27-Aug-26

Applicant Name: Joseph M Wichert, LLS (Agent)
Street Address: 975 Cedar Street
Secondary Frontages (if any): Auburn Street

Submission Date: 8/14/2026
Street Status: Accepted

Map / Lot: 379 / 6 A & 15
Alley Access: NO
Ward: 5

Base Zone: MX-1 (Mixed-Use - Neighborhood)

Building Type: House

Overlay District: None

Planning Department / Board Action

- ☐ Site Plan
☐ Subdivision
☐ Planned Development
☐ Conditional Use Permit
☐ Voluntary Merger

Additional Overlays

- ☐ Airport Approach ☐ Airport Navigational Hazard
☐ Airport Noise ☐ FEMA Flood Plain

Additional Review Required

- ☐ Conservation Commission ☐ Heritage Commission
☐ Regional Impact

Dimensions	Existing	Proposed
Area of Lot (Square Feet)	28,794	28,794
Area of Building on Lot (Square Feet)	3,144	3,144
Number of Stories	2	2
Total Area of All Floors (Square Feet)	3,080	3,080

Article 4 Uses	Permitted Per	Not Permitted Per	Remarks
☐ Single Family Dwelling	Table 4.3.1-A		OK
☐			
☐			
☐			

Article 4 Additional Requirements Per Use	Section	Permitted/ Required	Proposed/ Existing	Remarks
☐				
☐				
☐				
☐				
☐				
☐				
☐				
☐				

Article 5 Dimensional Requirements			Section	Permitted/ Required	Proposed/ Existing	Remarks
☐	Minimum Lot	Front-Loaded	5.3.1.A.3.A	50 ft.	125.58 ft.	OK
☐	Width	Alley-Loaded	5.3.1.A.3.A	50 ft.		
☐	Maximum Lot Width at Frontage		5.3.1.A.3.A	150 ft.	125.58 ft.	OK
☐	Lot Depth		5.3.1.A.3.B	100 ft.	200.06 ft.	OK
☐	Front/Street	Minimum	5.3.1.A.3.C	10 ft.	9 ft.	OK - Stair encroachment allowed
☐	Yard Setback	Maximum	5.3.1.A.3.C	20 ft.		
☐	Minimum Combined Side Yard Setback		5.3.1.A.3.D	20 ft.	54 ft.	OK
☐	Minimum Setback of One Side		5.3.1.A.3.E	5 ft.	18 ft.	OK
☐	Minimum Rear Yard Setback		5.3.1.A.3.F	20 ft.	141 ft.	OK
☐	Minimum Buildable Lot Area		5.3.1.A.3.G	5,000 SF	28,794 SF	OK
☐	Maximum Lot Coverage		5.3.1.A.3.H	70%		
☐	Uses Within Floors	First Floor	5.3.1.A.4.A	Residential	Residential	OK
☐		Upper Floors	5.3.1.A.4.A	Residential	Residential	OK
☐	Maximum Number of Dwelling Units per Building		5.3.1.A.4.C	1 + 1 ADU	1	OK
☐	Additional Lot Area Required for Residential Uses		-	N/A		
☒	Max. Impervious Surfaces, Front Yard		5.3.1.A.7.B.	25%	26.35%	N/C
☐	Specific Standards		5.3.1.A.7			
☐	Other					

Article 5 Height Requirements			Section	Permitted/ Required	Proposed/ Existing	Remarks
☐	Minimum Height in Stories		5.3.1.A.5.A	1 Story	2	OK
☐	Maximum Height in Stories		5.3.1.A.5.B	2.5 Stories		
☐	Maximum Height in Feet		5.3.1.A.5.C	35 ft.	Less	OK
☐	Minimum First Story Height		-	N/A		

Article 5 Street Façade Requirements			Section	Permitted/ Required	Proposed/ Existing	Remarks
☐	Entrance Type		5.4.2.A	Porch, Recessed Porch, Step, Recessed Entry	Porch	OK
☐	Street Façade Elements		5.4.2.B	N/A		
☐	Minimum Transparency per Façade	First Story - Primary	5.3.1.A.6.A	10%	Existing	OK
☐		First Story - Secondary	5.3.1.A.6.A	10%	Existing	OK
☐		Upper Stories	5.3.1.A.6.A	10%	Existing	OK
☐	Blank Wall Limitations	Primary Façade	5.3.1.A.6.B	15ft. max.	Existing	OK
☐		Secondary Façade	5.3.1.A.6.B	15ft. max.	Existing	OK
☐	Number of Street Entrances		5.3.1.A.6.D	Min. 1 entrance per unit	1	OK
☐	Roof Types		5.4.6.E	Pitched	Pitched	OK
☐	Façade Variety		5.4.6.F	Not Required	N/A	
☐	Building Materials		-	N/A		

Article 5 Accessory Structures			Section	Permitted/ Required	Proposed/ Existing	Remarks
☒	Setback	Front/Street Yards	5.6	Not Allowed	See Plan	N/C - 7 Structures & Pool within Street
☐		Side Yard		Match Primary Structure	Existing	OK- Green Hse Needs Permit
☐		Rear Yard		4 ft.		
☒	Height	Side/Street Yard	5.6	15 ft.	16 ft.	N/C
		Rear Yard		20 ft.	N/A	
☐	Size Limits	Side Yard	5.6			
		Rear Yard				
☐	Special Requirements / Pool		5.6.5.H	See Ord.	See Plan	OK

Article 7 Parking Requirements		Section	Permitted/ Required	Proposed/ Existing	Remarks
☐	Surface Parking Location	5.3.1.A.3.I	All Yards	Front	OK
☐	Garage Location	5.3.1.A.3.J	Rear, Side or Secondary Street Yard	See Plan	OK
☐	Parking, Number of Spaces	Table 7.2-A	1	2	OK
☐	Parking Surfaces	7.3.2	Required	Concrete	OK
☒	Maximum Driveway Width	7.4.2.A	24 ft.	33.1 ft.	N/C - Planning Board may allow
☐	Parking, Setbacks, From Lot Lines	7.5.1.A	See Ord.	See Plan	OK
☐	Parking, Setbacks, From Building	7.5.1.A	See Ord.	See Plan	OK
☐	Parking, Principal Frontage	7.5.1.B.2	See Ord.	See Plan	OK
☐	Parking, Tandem	7.5.1.C		N/A	
☐	Parking, Safety of Design	-		N/A	
☐	Parking Lot Perimeter Landscape	8.1.3	N/A		
☐	Parking Lot Interior Landscape, Percent	8.1.5.A	N/A		
☐	Parking Lot Interior Landscape, Tree Distribution	8.1.5.B	N/A		
☐	Landscape Islands	Distribution	8.1.5.C.1	N/A	
☐		Island Dimensions	8.1.5.C.2	N/A	
☐		Shade Trees Required	8.1.5.C.3	N/A	
☐	Landscape Islands	Distribution	8.1.5.C.1	N/A	
☐		Island Dimensions	8.1.5.C.2	N/A	
☐		Shade Trees Required	8.1.5.C.3	N/A	
☐	Parking Lot Interior Landscape, Stormwater Integration	8.1.5.E	N/A		
☐	Parking, Bumpers	-	N/A		
☐	Parking, Demarcation	7.5.1.C.2		N/A	
☐	Parking, Illumination	-	N/A		
☐	Stacking, Number of Spaces	Table 7.5.3-A		N/A	
☐	Stacking, Design	7.5.3.C			
☐	Loading, Number of Spaces	Table 7.5.4-A		N/A	
☐	Loading, Location	7.5.4.B			
☐	Loading, Screening	7.5.4.D			
☐	Loading, Dimensions	7.5.4.E			
☐	Number of Accessible Parking Spaces	Table 7.6-A		N/A	
☐	Accessible Parking Space, Dimensions	7.6.5 & 7.6.6			

Parking Space Requirements Building Use	Unit of Measurement	Computation	Spaces Required
Single Family Dwelling	1 per Unit	1 Unit x 1 = 1	1
		TOTAL:	1

Article 6 Special District-Wide Regulations		Section	Permitted/ Required	Proposed/ Existing	Remarks
☐	Limited Activity Buffer	6.4.2			
☐	Wetlands, No-Touch Buffer	6.4.3.C	10 ft.	N/A	
☐	Standard Structural Setback		25 ft.		
☐	Wetlands, No-Touch Buffer	6.4.3.D	25 ft.	N/A	
☐	High Priority Structural Setback		50 ft.		
☐	*Other*	6.4			

Article 8 Site and Landscaping Standards		Section	Permitted/ Required	Proposed/ Existing	Remarks
☐	Landscaping, Minimum Planting Size	8.1.1.D		N/A	
☐	Landscaped Buffer Yards, Buffer Yard Type Standards	Table 8.1.2-A		N/A	
☐	Landscaped Buffer Yards, District Boundaries	Table 8.1.2-B		N/A	
☐	Landscaped Buffer Yards, Use Abutting R or MX District Boundaries	Table 8.1.2-C		N/A	
☐	Fences and Walls	8.2		Existing	
☐	Fence Height	Table 8.2.4-A	4 ft.	5 ft.	OK - Variance # 131-ZO-94R
☐			6 ft.	5 & 4 ft.	OK - Wall no permit.
☐			8 ft.	N/A	Through Lot
☐	Height of Fences on Walls	8.2.4.A	4 ft.	N/A	No Fence on Walls
☐	Setback of Retaining Walls > 4 ft.	8.2.4.B	10 ft.	See Plan	OK - Wall under 4 ft.
☐	Screening of Dumpster & Utilities	Table 8.3-A		N/A	
☐	Visibility at Intersections	8.4	30 ft.	N/A	
☐	Site Lighting Standards	8.5	See Ord.	Existing	OK
☐	Open Spaces	8.6		N/A	

Section 8.7: Planned Developments	Proposed/ Existing	Remarks
☐	N/A	

*See Planned Development Standards Review Sheet

Article 9: Sign Standards	Proposed/ Existing	Remarks
☐	N/A	

*See Sign Standards Review Sheet

Additional Information: **Pool permit, ACC2021-03193 expired, was not inspected and did not provide the required safety barrier or fencing, per approved permit. No Permits on file for the Greenhouse and Retaining Wall shown on plan.

Property Location 975 CEDAR ST
Vision ID 10805

Account # 14575485

Map ID 0379/ / 0006/A /
Bldg # 1

Bldg Name
Sec # 1 of 1

Card # 1 of 1

State Use 1010
Print Date 8/5/2026 2:14:04 PM

CURRENT OWNER		TOPO	UTILITIES	STRT / ROAD		LOCATION	CURRENT ASSESSMENT				2017 MANCHESTER, NH VISION							
JEN HOMESTEAD REV TR		1 Suitable	1 All Public	1 Paved	1 Urban	Description	Code	Appraised	Assessed									
975 CEDAR ST				6 Sidewalk		RESIDNTL	1010	311,300	311,300									
MANCHESTER NH 03103		SUPPLEMENTAL DATA				RES LAND	1010	96,200	96,200									
		Alt Prol ID Land Adjus NO Voided NO Total SF 12540 TIF Zone Frontage/D No GIS ID 379-6A				RAD OR C CAD = 720 TIF Origina TIF Note Land Class R Parcel Zip 03103-3511 Assoc Pid#		RESIDNTL	1010	15,400	15,400							
								Total	422,900	422,900								
RECORD OF OWNERSHIP		BK-VOL/PAGE	SALE DATE	Q/U	V/I	SALE PRICE	VC	PREVIOUS ASSESSMENTS (HISTORY)										
JEN HOMESTEAD REV TR		8748 0268	04-08-2015	U	I	4,000	38	Year	Code	Assessed	Year	Code	Assessed V	Year	Code	Assessed		
HOMESTEAD, JEN REV TR		8748 0266	04-08-2015	U	I	4,000	38	2025	1010	311,300	2024	1010	311,300	2023	1010	311,300		
NIEMIEC, JOHN		0 0				0			1010	96,200		1010	96,200		1010	96,200		
									1010	15,400		1010	15,400		1010	15,400		
								Total	422,900	Total	422,900	Total	422,900	Total	422,900			
EXEMPTIONS		OTHER ASSESSMENTS		This signature acknowledges a visit by a Data Collector or Assessor														
Year	Code	Description	Amount	Code	Description	Number	Amount	Comm Int										
Total		0.00																
ASSESSING NEIGHBORHOOD																		
Nbhd		Nbhd Name		B		Tracing		Batch										
390																		
NOTES																		
SFB HAS A BEDRM NOT INCLUDED IN RM COUNT																		
PORTABLE H-TUB = N/V																		
4 SHEDS ARE ON ABUTTING LOT 379-15																		
2 HAVE N/V DUE TO SIZE																		
BUILDING PERMIT RECORD																		
Permit Id	Issue Date	Type	Description	Amount	Insp Date	% Comp	Date Comp	Comments	Date	Id	Type	Is	Cd	Purpost/Result				
2021-03193	08-03-2021	PO	Pool	60,000	12-08-2022	100	12-08-2022	Install a 16' X 40' fiberglass ing	12-08-2022	GT			05	Measur/ BP Or UC				
									01-06-2006	KM			00	Meas & Int Insp.				
									03-23-2005	MO			01	Meas/Int Estimate				
									03-23-2005	MO			02	2nd Visit Not Home				
									06-09-2000	RG			00	Meas & Int Insp.				
LAND LINE VALUATION SECTION																		
B	Use Code	Description	Zone	Land Type	Land Units	Unit Price	I. Factor	Site Index	Cond.	Nbhd.	Nbhd. Adj	Notes	Location Adjustment	Adj Unit P	Land Value			
1	1010	SINGLE FAM			12,540 SF	8.08	1.00000	1	1.00	390	0.950			1.0000	7.67	96,200		
Total Card Land Units					0 AC	Parcel Total Land Area					0	Total Land Value					96,200	

Property Location 975 CEDAR ST
Vision ID 10805

Account # 14575485

Map ID 0379 / 0006/A /
Bldg # 1

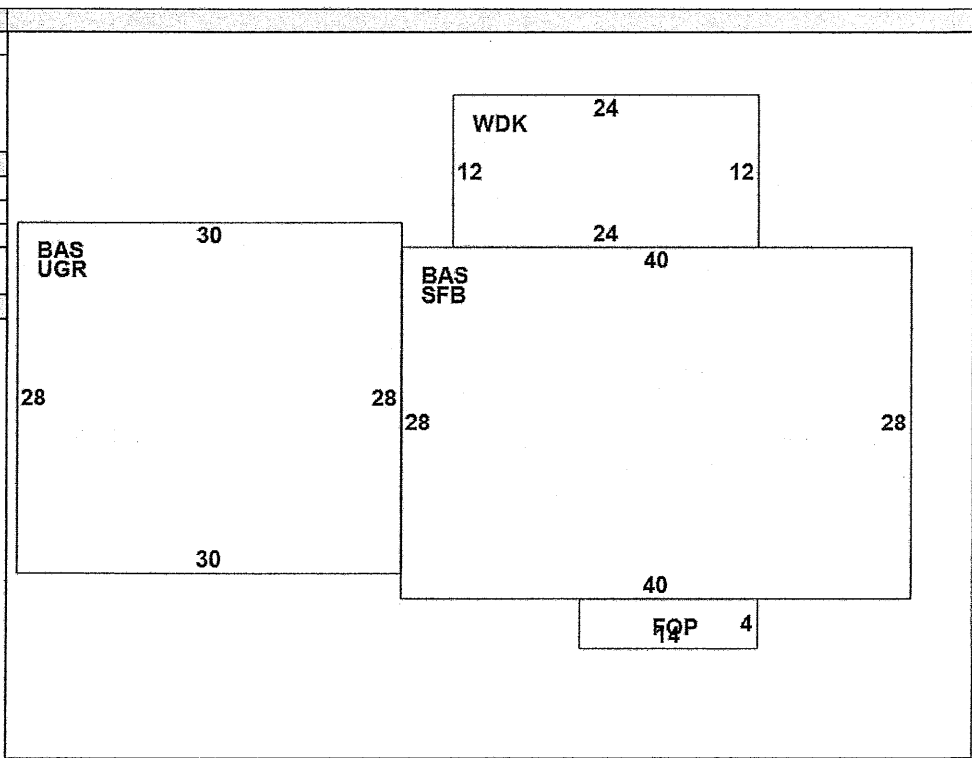
Bldg Name
Sec # 1 of 1

Card # 1 of 1

State Use 1010
Print Date 8/5/2026 2:14:05 PM

CONSTRUCTION DETAIL			CONSTRUCTION DETAIL (CONTINUED)		
Element	Cd	Description	Element	Cd	Description
Style:	08	Split-Level			
Model	01	Residential			
Grade:	03	Average			
Stories:	1	1 Story			
Occupancy	1				
Exterior Wall 1	25	Vinyl Siding			
Exterior Wall 2					
Roof Structure:	03	Gable/Hip			
Roof Cover	03	Asphalt			
Interior Wall 1	05	Drywall			
Interior Wall 2					
Interior Flr 1	14	Carpet			
Interior Flr 2	12	Hardwood			
Heat Fuel	03	Gas			
Heat Type:	05	Hot Water			
AC Type:	01	None			
Total Bedrooms	03	3 Bedrooms			
Total Bthrms:	2				
Total Half Baths	1				
Total Xtra Fixtrs					
Total Rooms:	6	6 Rooms			
Bath Style:	02	Average			
Kitchen Style:	02	Average			
MHP					

CONDO DATA			
Parcel Id		C	Owne
		B	S
Adjust Type	Code	Description	Factor%
Condo Flr			
Condo Unit			
COST / MARKET VALUATION			
Building Value New		419,420	
Year Built		1985	
Effective Year Built		1995	
Depreciation Code		AV	
Remodel Rating			
Year Remodeled			
Depreciation %		26	
Functional Obsol		0	
External Obsol		0	
Trend Factor		1	
Condition			
Condition %			
Percent Good		74	
RCNLD		310,400	
Dep % Ovr			
Dep Ovr Comment			
Misc Imp Ovr			
Misc Imp Ovr Comment			
Cost to Cure Ovr			
Cost to Cure Ovr Comment			



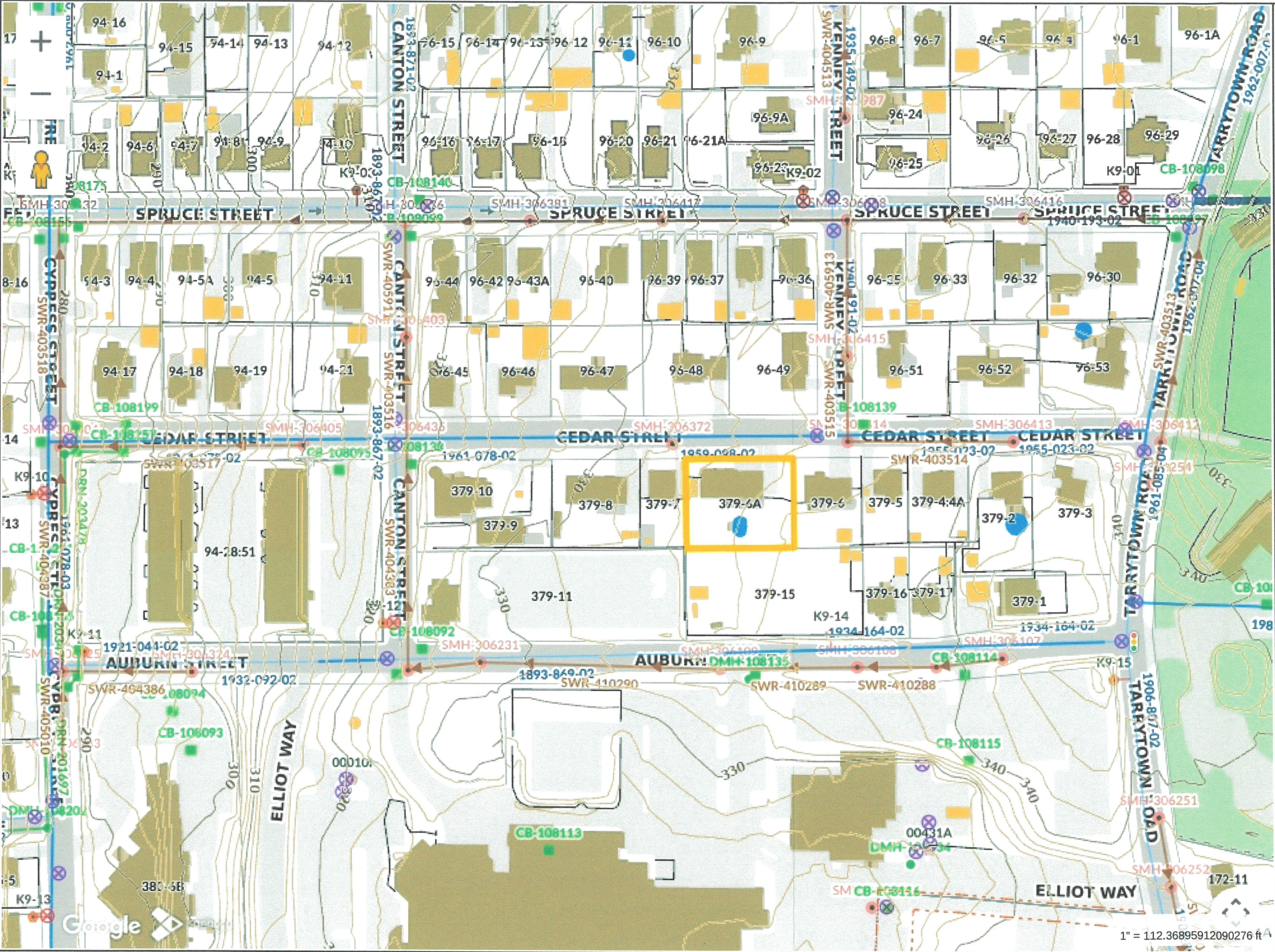
OB - OUTBUILDING & YARD ITEMS(L) / XF - BUILDING EXTRA FEATURES(B)										
Code	Description	L/B	Units	Unit Price	Yr Blt	Cond. Cd	% Gd	Grade	Grade Adj.	Appr. Value
PAT1	PATIO-AVG	L	330	10.00	2016		50		0.00	1,700
PAT1	PATIO-AVG	L	288	10.00	2016		50		0.00	1,400
HRTH	HEARTH	B	1	1200.00	1994		74		0.00	900
SPL1	POOL-INGR C	L	640	32.00	2021		60		0.00	12,300

BUILDING SUB-AREA SUMMARY SECTION						
Code	Description	Living Area	Floor Area	Eff Area	Unit Cost	Undeprec Value
BAS	First Floor	1,960	1,960	1,960	145.53	285,241
FOP	Porch, Open	0	56	11	28.59	1,601
SFB	Basement, Finished, Raised	0	1,120	672	87.32	97,797
UGR	Garage, Basement	0	840	210	36.38	30,561
WDK	Deck, Wood	0	288	29	14.65	4,220
Ttl Gross Liv / Lease Area		1,960	4,264	2,882		419,420



CURRENT OWNER		TOPO		UTILITIES		STRT / ROAD		LOCATION		CURRENT ASSESSMENT				2017 MANCHESTER, NH VISION								
JEN HOMESTEAD REV TR		1	Suitable	1	All Public	1	Paved	1	Urban	Description	Code	Appraised	Assessed									
975 CEDAR ST										RES LAND	1060	101,200	101,200									
MANCHESTER NH 03103										RESIDNTL	1060	1,300	1,300									
SUPPLEMENTAL DATA																						
Alt Prcl ID						RAD OR C CAD = 720																
Land Adjus NO						TIF Origina																
Voided NO						TIF Note																
Total SF 20000						Land Class R																
TIF Zone						Parcel Zip 03103																
Frontage/D No						Assoc Pid#																
GIS ID 379-15																						
RECORD OF OWNERSHIP										PREVIOUS ASSESSMENTS (HISTORY)												
JEN HOMESTEAD REV TR		8748	0270	04-01-2015	U	I	4,000	38	Year	Code	Assessed	Year	Code	Assessed V	Year	Code	Assessed					
NIEMIEC, JOHN		0	0	07-06-1990			0		2025	1060	101,200	2024	1060	101,200	2023	1060	101,200					
NIEMIEC BLANCHE		0	0				0			1060	1,300		1060	1,300		1060	1,300					
										Total		102,500	Total		102,500	Total		102,500				
EXEMPTIONS				OTHER ASSESSMENTS				This signature acknowledges a visit by a Data Collector or Assessor														
Year	Code	Description		Amount	Code	Description	Number	Amount	Comm Int													
Total				0.00																		
ASSESSING NEIGHBORHOOD																						
Nbhd		Nbhd Name		B		Tracing		Batch														
390																						
NOTES																						
7X7 SHD1 = N/V = SIZE																						
4X16 SHD1 = N/V = SIZE																						
BUILDING PERMIT RECORD																						
Permit Id	Issue Date	Type	Description	Amount	Insp Date	% Comp	Date Comp	Comments	Date	Id	Type	Is	Cd	Purpost/Result								
									12-08-2022	GT			14	Other								
									03-23-2005	MO			00	Meas & Int Insp.								
									06-09-2000	RG			14	Other								
									07-23-1991				00	Meas & Int Insp.								
LAND LINE VALUATION SECTION																						
B	Use Code	Description	Zone	Land Type	Land Units	Unit Price	I. Factor	Site Index	Cond.	Nbhd.	Nbhd. Adj	Notes	Location Adjustment	Adj Unit P	Land Value							
1	1060	VAC W IMP			20,000 SF	5.33	1.00000	1	1.00	390	0.950			1.0000	5.06	101,200						
Total Card Land Units																0 AC	Parcel Total Land Area		0	Total Land Value		101,200

CONSTRUCTION DETAIL						CONSTRUCTION DETAIL (CONTINUED)					
Element	Cd	Description				Element	Cd	Description			
Style:	94	Outbuildings									
Model	00	Vacant									
Grade:											
Stories:											
Occupancy											
Exterior Wall 1											
Exterior Wall 2											
Roof Structure:											
Roof Cover											
Interior Wall 1											
Interior Wall 2											
Interior Flr 1											
Interior Flr 2											
Heat Fuel											
Heat Type:											
AC Type:											
Total Bedrooms											
Total Bthrms:											
Total Half Baths											
Total Xtra Fixtrs											
Total Rooms:											
Bath Style:											
Kitchen Style:											
MHP											



Property Information
ParcelID 0379-0006A
Location 975 CEDAR ST
Owner JEN HOMESTEAD REV TR



MAP FOR REFERENCE ONLY
NOT A LEGAL DOCUMENT

City of Manchester, NH makes no claims and no warranties, expressed or implied, concerning the validity or accuracy of the GIS data presented on this map.

Geometry updated Daily
Data updated Daily

Print map scale is approximate. Critical layout or measurement activities should not be done using this resource.



City of Manchester
Planning & Community Development
One City Hall Plaza-West Wing
Manchester, NH 03101
(603) 624-6475
www.manchesternh.gov

Jeffrey D. Belanger, AICP
Director

Pamela H. Goucher, AICP
Deputy Director Planning & Zoning

Michael J. Landry, PE, Esq.
Deputy Director Building Regulations

VARIANCE CRITERIA

Complete this form and attach 10 copies along with any supplemental material that would support your appeal.

Deadline for Next Hearing: _____

Property Location: 975 Cedar Street

Owner: The JEN Homestead Revocable Trust

Address: 975 Cedar Street

Phone #: _____

Manchester, NH 03103

Email: _____

Applicant: Same as owner.

Address: _____

Phone #: _____

Email: _____

Relief Sought From Section(s): See Exhibit A

1. The variance would not be contrary to the public interest because: See Exhibit A.

2. The spirit of the ordinance is observed because: See Exhibit A.

3. Substantial justice would be done because: See Exhibit A.

4. The values of surrounding properties would not be diminished because: See Exhibit A.

5. Literal enforcement of the provisions of the ordinance would result in unnecessary hardship if:

(A) Owing to the following special conditions of the property that distinguish it from other properties in the area:

- i. No fair and substantial relationship exists between the general purposes of the ordinance provisions and the specific application of that provision to the property; and
- ii. The proposed use is a reasonable one.

Or (B) Owing to the following special conditions of the property that distinguish it from other properties in the area, the property cannot be reasonably used in strict conformance with the ordinance, and a variance is therefore necessary to enable a reasonable use of it.

See Exhibit A.

John Niemiec
Applicant Signature

John Niemiec for JEN Homestead Rev. Tr.
Print Name

June 15, 2026
Date

Exhibit A
Variance Application
975 Cedar Street, Manchester, New Hampshire

BACKGROUND:

The owner of record and applicant for this variance request is The JEN Homestead Revocable Trust, c/o John & Elaine Niemiec, Trustees, of 975 Cedar Street in Manchester, New Hampshire. The subject properties are Lot 6A, 15 and 16 on Manchester Tax Map 379. The parcels are located between Cedar and Auburn Streets and Tarrytown Road and Canton Street. Lot 6A has 126' of frontage along Cedar Street and an area of 12,540 SF. Lot 15 has 200' of frontage along Auburn Street and a parcel area of 20,062 SF. Lot 16 has 50' of frontage along Auburn Street and an area of 5,003 SF. There is a 2-story single family dwelling on lot 6A, which is the Niemiec residence and a 1-1/2-story single family dwelling on Lot 16. Lot 15 is undeveloped other than some accessory structures. City records indicate the house on Lot 6A was built in 1985 and the house on Lot 16 was built in 1923. The parcels are located in the MX-1 zoning district which requires 50' of lot width, 5,000 SF of lot area, a 10' minimum and 20' maximum front setback, 10' side setback (one side can be reduced to 5' if the total is 20') and a rear setback of 20' for single-family houses. The Niemiec's have resided at 975 Cedar Street since the house was built. The façade of their residence faces Cedar Street and they use lot 15 as their back yard. The applicant wants to adjust the lot lines of the parcels as shown on the plan. The end result would be increasing the size of the Auburn Street parcel and annexing the remainder of lot 379-15 onto the Cedar Street house, to match how the land is used.

During the zoning review, staff noted some unpermitted improvements on the parcels. The applicant has since pulled after the fact permits but zoning relief is needed for 5 sheds and 2 overhead covers. Unfortunately, when we add lot 379-15 onto lot 379-6A, it creates a through lot and you cannot use the accessory structure setbacks on through lots. If approved, the applicant wishes to maintain five of the accessory structures with setbacks between 0.9' to 5.6' and relocate one shed and one lean-to 4'+ off the sideline. In addition, the larger shed is approximately 0.8' higher than the 15' maximum allowed and the shed along Auburn Street is considered in the front yard. There is an existing 5' tall stockade fence along the frontage of lot 379-15 which functions as a rear yard to the house. While the accessory structures do not comply with the required side yard setback, this is how the yard has been used for years without any complaint or enforcement. The properties are well maintained and fit in well with the neighborhood.

SECTIONS OF THE ZONING ORDINANCE NEEDING RELIEF:

LOT 379-6A:

Section 5.3.1(A).3.C – Maintain shed 3.8' from a front lot line
Section 5.3.1(A).3.E – Maintain lean-to 0.9' from a side lot line
Section 5.3.1(A).3.E – Maintain shed 1.0' from a side lot line
Section 5.3.1(A).3.E – 2 counts of relocated sheds 4', or more from a side lot line
Section 5.3.1(A).3.E – Maintain shed 5.0' from a side lot line
Section 5.3.1(A).3.E – Maintain shed 5.6' from a side lot line
Section 5.6.2(B) – Maintain 16' high shed where 15' is allowed

1. Granting the variance would not be contrary to the public interest because:

Approval of this variance request would allow the applicant to adjust the lot lines of their parcels and maintain their yard as they have for years. While this proposal would result in Lot 6A becoming a through lot, that is how the owners have historically used their land. The lot is screened from Auburn Street (paid for by the Elliott) and the majority of the accessory structures are not visible from the road. The applicant will

relocate two of the existing accessory structures to be at least 4' from the side lot line and maintain the other ones as is. The accessory structure that is 0.9' from the side lot line is a roof for an existing pool filtration system and is not possible to move without moving the mechanical and plumbing systems. One of the accessory structures, located 5.6' from the side lot line, is approximately 1' taller than allowed due to the roof pitch. This shed was purchased by the applicant from the Elliot Hospital and is almost 100 years old so reducing the height would be a challenge. Maintaining the structures on this large lot poses no threat to public interest. We believe that approval of this variance would not be contrary to the public interest.

2. Granting the variance would not be contrary to the Spirit of the Zoning Ordinance because:

The intent of the zoning ordinance is to prevent overcrowding and unsafe development. The neighborhood has a mixture of older and newer homes that also have accessory structures similar distances from the lot lines in the side and rear yards. The subject parcel is a large city lot and the accessory structures are located in what is used as a large back yard for the owner. We believe this request is reasonable, within the spirit of the ordinance and should be approved.

3. By granting the variance, substantial justice would be done because:

Approval of these variance requests would allow the applicant to consolidate their existing properties and maintain their sheds with minor modifications to bring them closer to compliance with the Zoning Ordinance. The Zoning Ordinance does not allow accessory structures to be less than the required 10' side setback on through lots. The location of the accessory structures will not change, other than the two sheds being relocated fully onto the subject lot. The 16' tall shed poses no detriment to the public. We see no benefit to the public should the variance request be denied. As the loss to the applicant would greatly outweigh any perceived public gain, it is our opinion that the statutes specify that the variance should be approved.

4. The proposed use would not diminish surrounding property values because:

The applicant seeks a variance to allow them to maintain their existing sheds in approximately the same location on a through lot. The owners consider this space their rear yard even though the zoning ordinance does not. There are sheds throughout the neighborhood that appear to be closer to lot lines in the side or rear yards than is allowed. The height of the accessory structure that exceeds the 15' maximum allowed is due to the pitch of the roof and there is no easy way to modify this old structure. It is in good condition and does not pose an eyesore or safety concern to any abutting properties. The location of the sheds will not change the character of the neighborhood going forward and already exist. As such, approval of this variance would not reduce the value of surrounding properties.

5. Literal enforcement of the provisions of the ordinance would result in unnecessary hardship if, owing to the following special conditions of the property that distinguish it from other properties in the area:

- (1) No fair and substantial relationship exists between the general public purposes of the ordinance and the specific application to the Property;

The applicant wishes to complete a lot line adjustment and merger to consolidate three existing lots of record into two lots. Proposed lot 6A would become a through lot and

need variances to maintain the sheds within a side and front setback but is really used as a rear yard for 975 Cedar Street. One of the sheds is 16' high where 15' is the maximum allowed. It is our opinion that allowing the applicant to maintain the accessory structures and merge the lots as requested is a reasonable use of the property and as such, no fair and substantial relationship exists between the general purposes of the zoning ordinance and the specific application to the Property.

(2) The proposed use is reasonable;

Accessory structures are allowed in this district if they are less than 15' tall and located more than 4' from the property line when located in the side or rear yard on a conventional lot. The proposed lot reconfiguration creates a through lot which does not allow for the reduced setback. Because the owner has not obtained permits for the structures when installed, they are not considered grandfathered which is why relief is needed. As this is a unique situation where the through lot is not utilized as one, it is our opinion that the proposed use is reasonable.

PLAN REFERENCES:

- 1.) "MINOR SUBDIVISION & LOT LINE ADJUSTMENT PLAN FOR JOHN E. & ELAINE J. NIEMIEC, MANCHESTER, N.H.," DATED 1 MAY 1994 BY THIS OFFICE. SEE HCRD PLAN 28972.
- 2.) "PROPERTY OF MINOR SUBDIVISION OF BLANCHE NIEMIEC, MANCHESTER, N.H. HILLSBOROUGH COUNTY," DATED MAY 6, 1985 BY ROLAND P. THERRIEN. SEE HCRD PLAN 18155.
- 3.) "PLAN OF MEAD, MASON & CO ADDITION, MANCHESTER, N.H., LAID OUT BY JOSEPH B. SAWYER," DATED SEPT. 1, 1891. SEE HCRD PLAN 209-1.
- 4.) "PLAN OF MEAD, MASON & CO. AND PLATTS & SONS, MANCHESTER, N.H.," NOT DATED. SEE HCRD PLAN 36-2.
- 5.) "SUBDIVISION PLAN OF LAND OF ARTHUR A. & LILA YOUNG, 276 TARRYTOWN ROAD, MANCHESTER, NEW HAMPSHIRE" DATED DECEMBER 20, 1990 BY GILLIS ENGINEERING CORP. SEE HCRD PLAN 25015.
- 6.) "BOUNDARY & CONSOLIDATION PLAN TAX MAP 379, LOTS 11, 12 & 13, AUBURN & CANTON STREETS, MANCHESTER, NEW HAMPSHIRE" DATED SEPTEMBER 2008 AND PREPARED BY OLD ENGINEERS. ON FILE AT THE CITY OF MANCHESTER DEPARTMENT OF PUBLIC WORKS.
- 7.) "1013 CEDAR STREET CONDOMINIUMS, TAX MAP 379 LOT 4, 1013 CEDAR STREET, MANCHESTER, NEW HAMPSHIRE" DATED JULY 10, 2003 AND PREPARED BY TRUE ENGINEERING. SEE HCRD PLAN 32553.

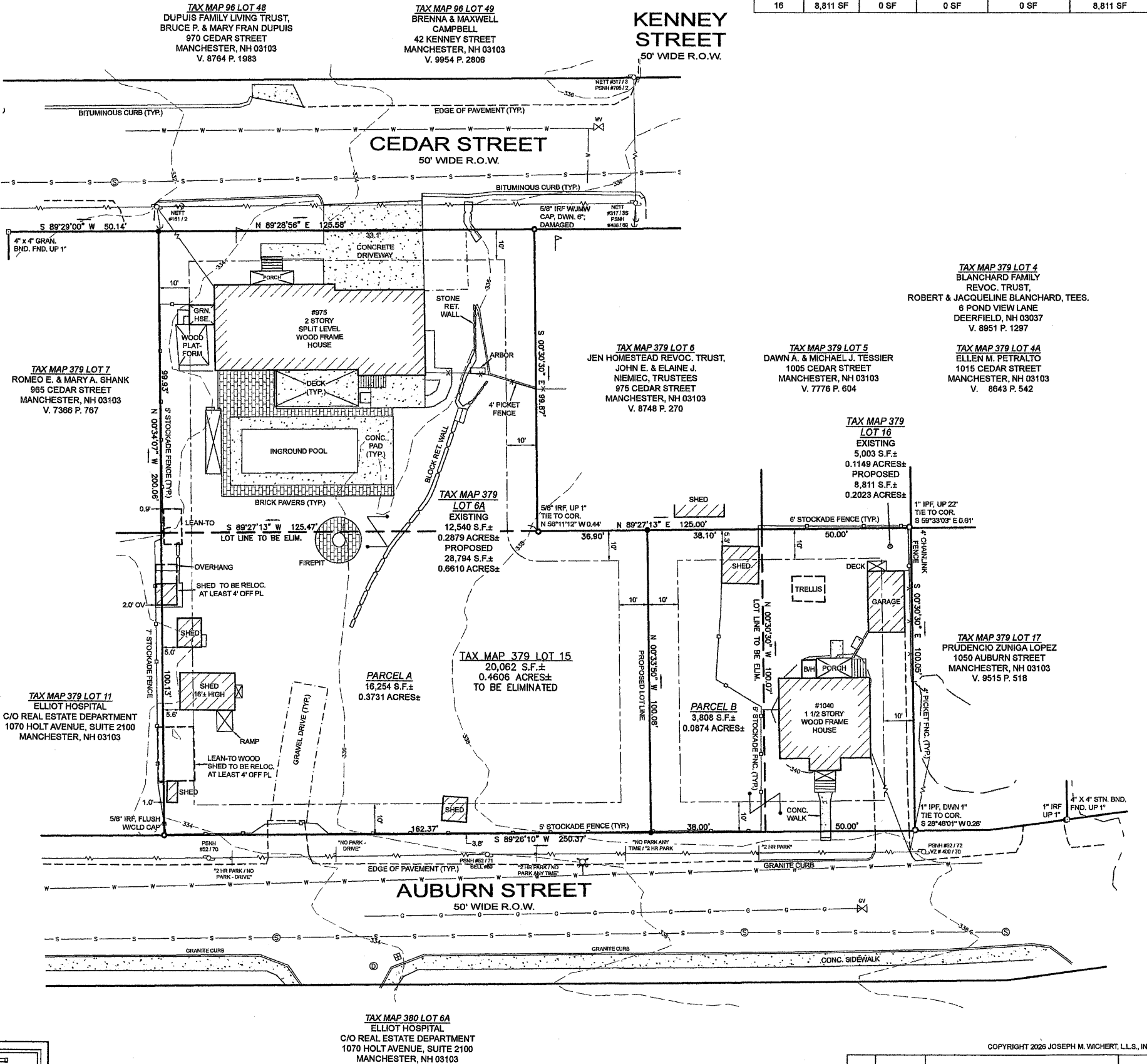
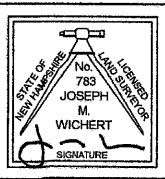


SYMBOL LEGEND

- GRAN. OR CONC. BOUND FOUND
- IRON PIPE FOUND
- IRON ROD FOUND
- IRON ROD W/ID CAP TO BE SET
- CATCH BASIN
- DRAIN MANHOLE
- HYDRANT
- FLAG POLE
- GUY WIRE
- GAS VALVE
- SIGN POST
- SEWER MANHOLE
- UTILITY POLE
- WATER VALVE
- CHAINLINK FENCE
- STOCKADE FENCE
- PICKET FENCE
- GAS LINE
- OVERHEAD WIRE

I CERTIFY THAT THIS PLAN IS THE RESULT OF AN ACTUAL FIELD SURVEY MADE WITH A TOPCON GT503. THE ERROR OF CLOSURE ON ALL LOT LINES WITHIN AND BORDERING THE SUBJECT PROPERTY IS BETTER THAN 1 IN 10,000.

JOSEPH M. WICHERT, LLS
17 AUG. 2026
DATE



BUILDABLE AREA TABLE					
LOT #	LOT AREA	AREA > 25%	WETLAND AREA	EASEMENT AREA	BUILDABLE AREA
6A	28,794 SF	0 SF	0 SF	0 SF	28,794 SF
16	8,811 SF	0 SF	0 SF	0 SF	8,811 SF

NOTES:

- 1.) THE SUBJECT PARCELS ARE LOTS 6A, 15 AND 16 ON THE CITY OF MANCHESTER TAX MAP 379. THE OWNER OF RECORD FOR ALL LOTS IS THE JEN HOMESTEAD REVOCABLE TRUST, c/o JOHN E. & ELAINE J. NIEMIEC, TRUSTEES OF 975 CEDAR STREET, MANCHESTER, NEW HAMPSHIRE 03103. FOR LOT 6A SEE HCRD V. 8748 P. 288; FOR LOT 15 SEE HCRD V. 8748 P. 270; FOR LOT 16 SEE HCRD V. 8769 P. 2004.
- 2.) THE SUBJECT PARCELS ARE ZONED MX-1. FOR A SINGLE FAMILY HOME MINIMUM LOT SIZE IS 5,000 SQ. FT. MINIMUM LOT FRONTAGE = 50'. SETBACKS ARE AS FOLLOWS: FRONT = 10' MIN./20' MAX., SIDE = 5' MIN. W/ 20' MIN. TOTAL BOTH SIDES AND REAR = 20'. THE SETBACKS SHOWN ARE FOR REFERENCE ONLY AND NEED TO BE VERIFIED WITH THE ZONING COMPLIANCE OFFICER.
- 3.) THIS PLAN IS THE RESULT OF AN ACTUAL FIELD SURVEY PERFORMED BY THIS OFFICE IN MAY AND JUNE OF 2026. I, JOSEPH M. WICHERT, NHLS #783, CERTIFY THAT THE WORK WAS PREPARED BY ME OR THOSE UNDER MY DIRECT SUPERVISION.
- 4.) THE INTENT OF THIS PLAN IS TO ADJUST THE BOUNDARY LINES BETWEEN THE SUBJECT PARCELS AS SHOWN IN THE PLAN VIEW. PARCELS A AND B ARE NOT TO BE CONSIDERED SEPARATE BUILDING LOTS BUT WILL HENCEFORTH BE COMBINED WITH AND BECOME A PART OF LOTS 6A AND 16 RESPECTIVELY. APPROVAL OF THIS PLAN WILL NOT CREATE ANY NEW BUILDING LOTS, RATHER LOT 15 WILL BE DIVIDED AND MERGED WITH THE OTHER PARCELS RESULTING IN A REDUCTION OF LOTS FROM 3 TO 2.
- 5.) THE SUBJECT PARCELS ARE IN ZONE X (AREAS DETERMINED TO BE OUTSIDE THE 0.2% ANNUAL CHANCE FLOODPLAIN) AS SHOWN ON THE FLOOD INSURANCE RATE MAP, HILLSBOROUGH COUNTY, NEW HAMPSHIRE, MAP NUMBER 33011C0381D, EFFECTIVE DATE SEPTEMBER 25, 2009.
- 6.) THE VERTICAL DATUM IS NAVD 1988 AND THE HORIZONTAL DATUM IS NHSPC 1983/1992 (CITY DATUM). THE DATUM WERE ESTABLISHED USING STATIC GPS OBSERVATIONS PERFORMED BY THIS OFFICE IN MAY OF 2026.
- 7.) THE UTILITY INFORMATION SHOWN IS BASED ON THE ABOVE GROUND LOCATION OF VISIBLE UTILITIES AND PLANS ON FILE AT THE MANCHESTER HIGHWAY DEPARTMENT AND VARIOUS UTILITIES. THE CONTRACTOR NEEDS TO FIELD VERIFY ALL UTILITIES PRIOR TO ANY CONSTRUCTION. THIS OFFICE DOES NOT GUARANTEE THE LOCATION AND ACCURACY OF THE UTILITY DATA. DIG SAFE SHALL BE CONTACTED 72 HOURS PRIOR TO COMMENCING ANY CONSTRUCTION (811).

TOPOGRAPHIC
LOT LINE ADJUSTMENT & MERGER PLAN FOR
THE JEN HOMESTEAD REV. TRUST
TAX MAP 379 LOTS 6A, 15 & 16
975 CEDAR STREET & 1040 AUBURN STREET
MANCHESTER, NEW HAMPSHIRE

DATE: 10 JUNE 2026 SCALE: 1" = 20'

LOT LINE ADJUSTMENT PLAN BY:

802 AMHERST STREET
MANCHESTER, NH 03104
TEL: (603) 647-4282 OR 736-8203
FAX: (603) 623-1910
WEB: WWW.JMWLLS.COM

Joseph M. Wichert
LLS, INC.

LAND SURVEYOR & SEPTIC SYSTEM DESIGNER

SHEET S1 SHEET 1 OF 1

F.B. - P. - JOB #2026115

COPYRIGHT 2026 JOSEPH M. WICHERT, LLS, INC.			
NO.	DATE	DESCRIPTION	BY
2	8/10/26	REV. FOR ZBA SUBMISSION	JMW
1	7/28/26	REV. PER STAFF COMMENTS	JMW